

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS-----X  
CUAME NELSON,

Index No.: 504911/2017

Plaintiff,

-against-

**AMENDED  
VERIFIED COMPLAINT**THE CITY OF NEW YORK, NEW YORK POLICE  
DEPARTMENT, DETECTIVE EDWIN ESPINAL,  
LIEUTENANT KEVIN TO and POLICE OFFICER  
STEVEN LOPEZ,Defendants,  
-----X**AS AND FOR A FIRST CAUSE OF ACTION**

1. At the time of the filing of the original summons and verified complaint, plaintiff was a resident of the County of Kings, City and State of New York. That plaintiff currently resides in North Charleston, South Carolina.

2. At all times hereinafter mentioned, defendant The City of New York was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

3. The Police Department of the City of New York is an agency acting on behalf of The City of New York and engaged by The City of New York to perform police duties and to protect the health, welfare property and safety of the residents of The City of New York.

4. That at all times herein mentioned, defendant **DETECTIVE EDWIN ESPINAL** was a police detective employed by the New York City Police Department, and at all times herein mentioned, was acting in the scope of his employment as a police detective.

5. That at all times herein mentioned, defendant **LIEUTENANT KEVIN TO** was a police lieutenant employed by the New York City Police Department, and at all times herein mentioned, was acting in the scope of his employment as a police lieutenant.

6. That at all times herein mentioned, defendant **POLICE OFFICER STEVEN LOPEZ** was a police officer employed by the New York City Police Department, and at all times

herein mentioned, was acting in the scope of his employment as a police officer.

7. That at all times hereinafter mentioned, defendant The City of New York, its agents, servants and employees operated, maintained and controlled the Police Department including all the police officers thereof.

8. On December 23, 2016, plaintiff's Notice of Claim was made and served upon the defendant, said service occurring within 90 days of the plaintiff's release from custody for the incident giving rise to this lawsuit.

9. That more than 30 days have elapsed from the date of service of the notice of claim and defendants have failed and refused to pay or adjust said claim.

10. That this action is being commenced within one (1) year and ninety (90) days after the happening of the events upon which the claim is based.

11. That on December 11, 2015 at approximately 1:00 am, **DETECTIVE EDWIN ESPINAL, LIEUTENANT KEVIN TO** and, **POLICE OFFICER STEVEN LOPEZ**, without reasonable or probable cause, falsely arrested plaintiff pursuant to an illegal search and seizure.

12. The incident as afore described resulted from the negligence of the defendants, its agents, servants and/or employees, with no negligence on the part of the plaintiff contributing thereto.

13. That plaintiff was wrongfully imprisoned and unlawfully detained until he was released from police custody on October 14, 2016.

14. As a result of the foregoing, plaintiff sustained damages in an amount which exceeds the jurisdiction of any lower court.

**AS AND FOR A SECOND CAUSE OF ACTION**

15. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs 1 - 14 hereof with the same force and effect as though fully set forth herein at length.

16. After falsely arresting plaintiff, police officers handcuffed plaintiff and restrained him and unlawfully detained plaintiff in police custody.

17. The unlawful detention of plaintiff caused said plaintiff pain, humiliation, personal injury and suffering.

18. As a result of the foregoing plaintiff has been damaged in an amount which exceeds the jurisdiction of any lower court.

**AS AND FOR A THIRD A CAUSE OF ACTION**

19. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs 1 - 14 and 15-18 hereof with the same force and effect as though fully set forth herein at length.

20. That after falsely arresting plaintiff, plaintiff was brought to the police precinct and then to Central Booking and was unlawfully imprisoned, constituting a false imprisonment of plaintiff.

21. That the false imprisonment of plaintiff caused said plaintiff personal injury, pain, humiliation and suffering.

22. As a result of the foregoing plaintiff has been damaged in an amount which exceeds the jurisdiction of any lower court.

**AS AND FOR A FOURTH CAUSE OF ACTION**

23. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs 1-14, 15-18, and 19-22 hereof with the same force and effect as though fully set forth herein at length.

24. In placing plaintiff under arrest, police officers used excessive and unjustified force, intimidated plaintiff and injured plaintiff.

25. The actions of the arresting officers constituted an assault and battery.

26. As a result of the assault and battery committed on plaintiff, plaintiff sustained personal injuries.

27. As a result of the injuries inflicted on plaintiff, plaintiff has been damaged in an amount which exceeds the jurisdiction of any lower court.

**AS AND FOR A FIFTH CAUSE OF ACTION**

28. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs 1-14, 15-18, 19-22 and 23-27 hereof with the same force and effect as though fully set forth herein at length.

29. Subsequent to plaintiff's arrest, a criminal prosecution was commenced and continued by defendants against plaintiff.

30. That plaintiff was indicted on or around December 15, 2015 for charges he was innocent of.

31. That all charges against plaintiff were dismissed on October 20, 2016; the dismissal of the charges constituted a termination of the proceeding in favor of plaintiff.

32. That the charges were false in that there was no probable cause for the criminal proceeding against plaintiff.

33. That the police wrongfully charged and prosecuted plaintiff.

34. The prosecution of plaintiff constituted malicious prosecution in that it was motivated and carried out with actual malice.

35. As a result of the malicious prosecution of plaintiff, plaintiff sustained personal injuries.

36. As a result of the malicious prosecution of plaintiff, plaintiff has been damaged in an amount which exceeds the jurisdiction of any lower court.

**WHEREFORE**, plaintiffs demand judgment against the defendants on all causes of action in amounts that exceed the jurisdiction of any lower court, with interest, costs and disbursements of the action.

Dated: Brooklyn, New York  
April 11, 2022

Yours, etc.,

A handwritten signature in black ink, appearing to read 'Julie P. Lee', written over a horizontal line.

Julie P. Lee, Esq. of  
**ROSS & HILL, ESQS.**  
Attorneys for Plaintiff  
16 Court Street, 35<sup>TH</sup> Floor  
Brooklyn, New York 11241  
(718) 855-2324

STATE OF NEW YORK, COUNTY OF KINGS) s.s.:

I, the undersigned, an attorney duly admitted to practice law in the Courts of this State, state that I am an Associate in the firm of Ross and Hill, Esqs., attorneys of record for plaintiff in this action; I have read the foregoing **AMENDED COMPLAINT** and know the contents thereof; the same is true to my own knowledge, except as to the matters therein alleged to be on information and belief and, as to those matters, I believe it to be true.

The reason this verification is made by me and not by the plaintiff is that plaintiff resides outside of the County in which your affirmant maintains offices.

The grounds of my belief as to all matters not stated upon my own knowledge are as follows: consultation with plaintiff, investigative reports, memoranda and other data in the file concerning the subject matter of the within litigation.

I affirm the foregoing statements are true, under the penalty of perjury.

Dated: Brooklyn, New York  
April 11, 2022

  
Julie P. Lee, Esq.  
Ross & Hill  
Attorneys for Plaintiff  
16 Court Street, 35<sup>th</sup> Floor  
Brooklyn, New York 11241

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EDWIN ESPINAL, LIEUTENANT KEVIN TO and POLICE OFFICER STEVEN  
LOPEZ,**

**Defendants.**

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**AMENDED COMPLAINT**  
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**LAW OFFICES OF ROSS AND HILL, PLLC.**

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**16 Court Street, 35<sup>th</sup> Floor**  
**Brooklyn, New York 11241**  
**Tel (718) 855-2324**  
**Fax (718) 855-4617**

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**To:**

**Service of a copy of the within  
is hereby admitted.**

**Dated:**

***Attorney(s) for***  
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